LABOR CERTIFICATION

How PERM labor certification works

A plain-language walkthrough of the Department of Labor stage behind most green cards — the test of the market, the paperwork it produces, and where cases actually get stuck.



START HERE

What PERM is, and why almost every green card runs through it.

PERM — the Program Electronic Review Management system — is how the Department of Labor certifies that hiring a foreign worker permanently will not displace a qualified US worker. It is a market test, not a formality, and it sits in front of almost every employer-sponsored green card.

4
STAGES BEFORE FILING
Job definition, wage determination, recruitment, then the ETA-9089 application itself.

30
DAY QUIET PERIOD
Mandatory wait after recruitment closes before the application can be filed.

14–20
MONTHS, TYPICAL CASE
From job definition to certification. An audit adds several months on top.

WHAT'S IN THIS GUIDE

03	Who needs PERM, and who's exempt	EB-2, EB-3, Schedule A
04	Building the case, stage by stage	Stages 1–4
05	Filing, audits, and appeals	What happens after ETA-9089
06	What it costs, and who pays	Fee breakdown
07	A real case, end to end	Welder, clean certification
08	Questions we get every week	FAQ
09	How we run it with you	Working with Corvell

ELIGIBILITY

Most green cards need it. A few categories skip it entirely.

EB-2 sponsorship

ADVANCED DEGREE · PERM REQUIRED

Roles genuinely requiring a master's or higher, or a bachelor's plus five years of progressive experience. The most common path into PERM for professional and technical roles.

EB-3 sponsorship

SKILLED & OTHER WORKERS · PERM REQUIRED

Skilled workers (two years training or experience), professionals (a bachelor's), and other workers filling unskilled roles. Same PERM process, a different visa queue — often faster for some countries of birth.

Schedule A occupations

RNs & PHYSICAL THERAPISTS · NO PERM

DOL has pre-certified these occupations as facing a persistent shortage. Recruitment and the 30-day quiet period are skipped — the case files directly with USCIS.

RULE OF THUMB

If the role sits on Schedule A, skip straight to the I-140 — running PERM anyway only adds a year. Everyone else starts with the job definition on the next page.

Every stage exists to make the file defensible.

What decides a PERM case is the paperwork. Each stage below creates a record that DOL — or an auditor years later — can ask you to show.

01

Define the job

1–2 WEEKS

Title, duties, minimum education and experience, and worksite — set to what the role genuinely requires, not what the employee happens to have. This is the yardstick every later applicant is measured against.

02

Prevailing wage determination

5–8 MONTHS · DOL

DOL's National Prevailing Wage Center sets the floor wage for the role, in that location, at that skill level. The recruitment ads that follow must offer at least this rate. File it first — it's the longest passive wait in the case.

03

Recruitment

60–75 DAYS

A prescribed set of ads — two Sunday print or major-site postings, a 30-day state job order, plus three of ten supplemental steps for professional roles. Every US applicant gets a good-faith review, documented in writing.

04

The 30-day quiet period, then file

30 DAYS + FILE ETA-9089

Recruitment has to close and sit for 30 days before filing, so no last-minute applicant is overlooked. Then the ETA-9089 goes in — the certification request itself, built on everything above.

KEEP IN MIND

The recruitment report — who applied, why each was or wasn't qualified — becomes the public-access file. Build it as if an auditor will read it in three years, because they might.

AFTER YOU FILE

Certification, audit, or denial — three ways it goes.

05 Certified without review

6–12 MONTHS · MOST COMMON

The majority of clean, well-documented filings clear this way. Certification sets the employee's priority date and unlocks the I-140 petition — the case moves to USCIS from here.

06 Selected for audit

+4–8 MONTHS

DOL requests the underlying recruitment records — ads, resumes, rejection reasons. Audits are often random, not accusatory; a file built correctly the first time answers itself.

07 Denied — reconsideration or BALCA appeal

+3–12 MONTHS

A denial can go back to the certifying officer for reconsideration or up to the Board of Alien Labor Certification Appeals. Most denials trace to a recruitment technicality — refiling clean is often faster than appealing.

FOR THE EMPLOYER

Keep the public-access file complete from day one — job order, ads, résumés, and rejection reasons — retrievable in one place, not scattered across inboxes.

FOR THE EMPLOYEE

Certification is a milestone, not the finish — the I-140 and, eventually, the visa-number wait still follow. Keep your underlying status valid throughout.

AFTER CERTIFICATION

Certified ETA-9089s are valid for 180 days — the I-140 has to be filed within that window, or the certification lapses and recruitment starts over.

COSTS

What it costs, and who is allowed to pay it.

The ETA-9089 filing itself has no government fee. The rule that surprises employers: every dollar of recruitment and legal cost for the PERM stage must come from the employer, never the employee.

ITEM	STAGE	WHO PAYS	TYPICAL
Prevailing wage determination	Stage 2	Employer	No fee
Job order & print advertising	Stage 3	Employer	$600–$2,500
Supplemental recruitment steps	Stage 3	Employer	$200–$800
ETA-9089 filing	Stage 4	Employer	No fee
Audit response, if selected	Post-filing	Employer	No fee
BALCA appeal, if denied	Post-filing	Either	No fee
Form I-140, once certified	Next step	Employer	$715

Government fees current at publication and subject to change without notice. Recruitment ad costs vary by market and publication. Legal fees are quoted separately as a flat fee for the PERM stage.

CASE STUDY

A machine operator, certified in 18 months, no audit.

A packaging plant wanted to sponsor a machine operator already working there on a temporary visa. We defined the role, ran the wage request, and posted recruitment on the standard schedule.

No US applicants applied during the 60-day window. DOL certified the case without selecting it for audit, and the I-140 followed the same week.

> **"We didn't have to think about it once recruitment was posted. It just moved."**
>
> PLANT MANAGER — CLIENT, PACKAGING MANUFACTURER

CASE TIMELINE

Retained	Month 0
Wage determination issued	Month 5
Recruitment closed	Month 6
30-day quiet period cleared	Month 7
ETA-9089 filed	Month 7
Certified, no audit	Month 18

18 mo
RETAINER TO CERTIFICATION

0
AUDITS TRIGGERED

0
US APPLICANTS

Composite example based on matters we handle. Prior results do not guarantee a similar outcome.

FAQ

Questions we answer every week.

Can we write the job description around our employee?	No — requirements have to reflect what the business role genuinely needs, not what one person happens to hold. DOL and USCIS both check for this, and it's the single most common reason for denial.
What if the wage determination comes back higher than expected?	You can request review, but most employers simply plan to pay it — the wage is binding once the green card is granted. Building in a cushion at the job-definition stage avoids surprises here.
How likely is an audit?	DOL doesn't publish a rate, and selection includes both random review and specific red flags — a foreign-sounding job title, an unusually specific requirement, or a wage set at the exact minimum. A clean file handles either case the same way.
Can the same PERM be reused for another employee?	No — certification is tied to a specific worker and job. A new hire in the same role needs its own recruitment and filing, even if the job description is unchanged.
Does recruitment have to run nationwide?	No — the job order and ads target the labor market for that specific worksite, not the whole country. A rural plant and a downtown office draw from very different pools, and the recruitment should reflect that.
What if the employee's role changes while this is pending?	Tell us before it happens. A material change to duties, title, or worksite can require restarting recruitment — catching it early is far cheaper than catching it in an audit.
When should we start?	As soon as the role and the candidate are both settled. If the employee is on an H-1B, starting by year four keeps the sixth-year extension option open.

WORKING WITH CORVELL

You should never have to ask where a case stands.

One intake, then we drive

A single structured intake per case. After that we chase the wage request, the ads, and the deadlines — not your HR team.

A dashboard, not a thread

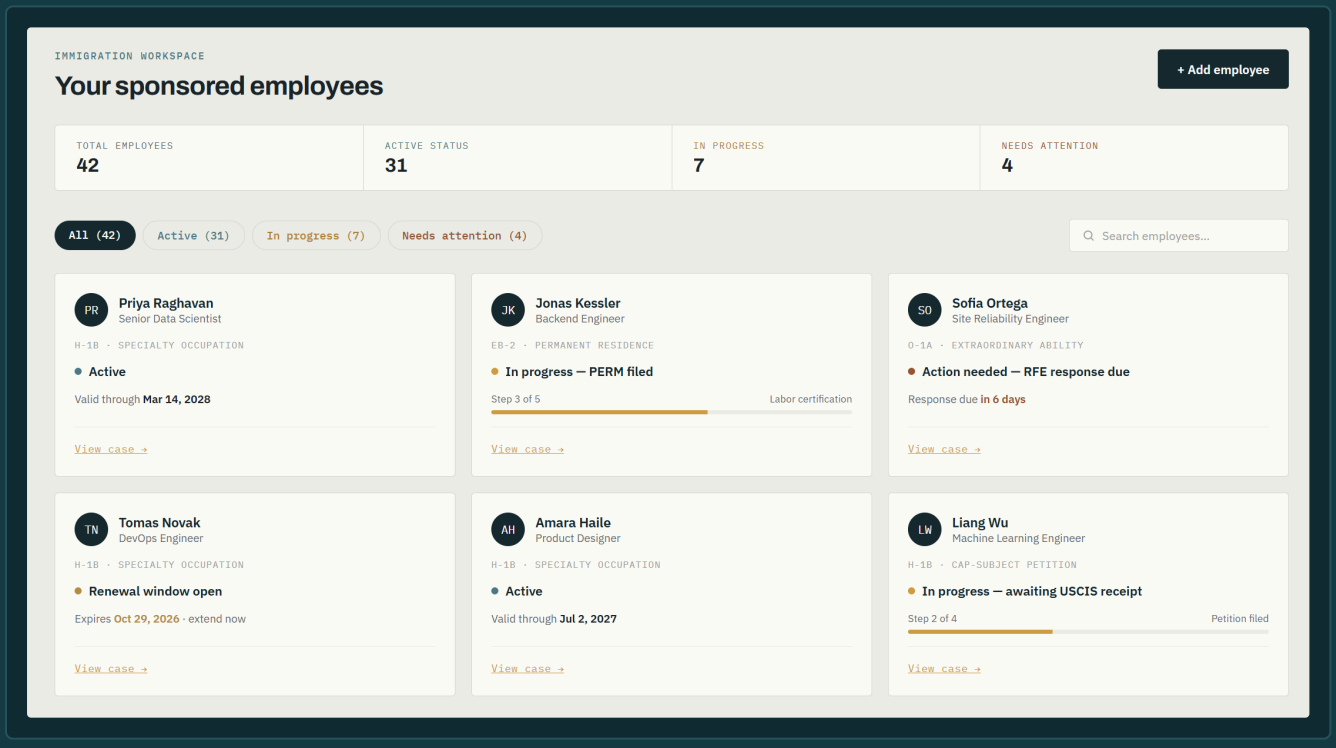
Every matter runs through auditable workflows with live status. No version-guessing, no buried email.

Flat fees, per stage

Quoted before we start, 20–40% below conventional firms, with no junior-associate markups added on the way.

Audit-ready by default

Public-access files and recruitment records are built as we go, so a DOL audit years later is a retrieval task, not a scramble.



NEXT STEP

Send us the role. We'll tell you if PERM is needed, and how long it runs.

A 30-minute call is usually enough to know whether the role qualifies for Schedule A, or how to build a PERM file that clears an audit clean.

TALK TO US

+1 (555) 010-0123

hello@example.com

example.com

OFFICE

100 Example Avenue

Suite 200

Anytown, FL 00000

SERVICES

EB-2 · EB-3 · H-1B · H-2B · Compliance & audits

INDUSTRIES

Construction · Hospitality · Healthcare · Technology · Landscaping & grounds · Manufacturing · Senior & long-term care · Food & seafood processing

Corvell. IMMIGRATION

Attorney advertising. This guide is general information, not legal advice, and reading it does not create an attorney–client relationship. Government fees and processing times are current at publication and change without notice. © 2026 Corvell Immigration.